



Steal Raganwald's Book!

Heartfelt essays on the freedom of people and ideas

Reg “raganwald” Braithwaite

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Preamble

You seem to think that we might censor a student's thesis, which is lawful and already in the public domain, simply because a powerful interest finds it inconvenient. This shows a deep misconception of what universities are and how we work. Cambridge is the University of Erasmus, of Newton, and of Darwin; censoring writings that offend the powerful is offensive to our deepest values. Thus even though the decision to put the thesis online was Omar's, we have no choice but to back him. That would hold even if we did not agree with the material! Accordingly I have authorised the thesis to be issued as a Computer Laboratory Technical Report. This will make it easier for people to find and to cite, and will ensure that its presence on our web site is permanent

Ross Anderson, Professor of Security Engineering, University of Cambridge, [Responsible disclosure and academic freedom](#)¹

Introduction

I was born in Canada in 1962. Coincidentally, 1962 is also the year that James Meredith became the first Negro (that was the offensive term of the day) to attend Ole Miss. It was not easy: Despite having served his country honourably in the Air Force, his application was rejected twice. Assisted by Medgar Evers and the NAACP, he fought all the way to the US Supreme Court, which ruled that he was to be admitted.

Riots broke out, and the attorney general sent in 500 US Marshals and a combat battalion. The president sent in military police, the National Guard, and the US Border Patrol. Two people were killed and two hundred troops were injured or wounded in the effort to uphold America's constitution and laws.

¹<http://www.cl.cam.ac.uk/~rja14/Papers/ukca.pdf>



James Meredith walks to class at Ole Miss, accompanied by US Marshals

Meredith graduated on August 18, 1963 with a degree in political science and went on to a life of service to his country's ideals. After all, he fought for the same thing America's founders fought for, the same thing American servicemen fought for: Freedom. What could be more American than to fight for freedom against oppression?

As a Canadian, I share the deep and basic lust for freedom that America espouses. Canada, as everyone knows, was the beacon of hope for the oppressed during the time of Slavery. Canada was the haven for those who refused to serve during the Vietnam War. Like America, Canada was a safe country for those who fled the Nazis during the Second World War.

And thus, I hold the ideals of freedom dear. I am patriotic about freedom. From time to time I quibble with my friends about exactly *how* to achieve those ideals. For example, some people believe that healthy citizens are more free than those who cannot afford health care. Some people believe that the freedom of the marketplace is more important. But we always agree on the overall goal.

Today we still fight for freedom. Although racism will never go away, today there are people continuing the fight for reproductive rights and for the right to marry the person you love. And there are people fighting for the right to say what you please, to whom you please, about what you please, without fear.

That much has not changed a bit in the fifty years since I was born, and the issues of our time like Freedom Zero and Cyber-Privacy and the right to Internet access are no different than the freedom to attend university or the freedom to protest against injustice.

What could be more American or Canadian than to fight for the freedom to speak freely, the freedom to associate, academic freedom, scientific freedom, freedom from intrusion of privacy, freedom from unjust imprisonment, the freedom to tinker, or the freedom to publish the truth?

Steal This Book!

The title of this book is, of course, a blatant rip-off of Abbie Hoffman's 1970 revolutionary how-to, "[Steal This Book](#)."² I don't recall if I stole a copy in the 1970s, but I do recall reading it with interest. Some years later, I dropped into a bookstore and asked if they had a copy. The clerk had heard of it. "Oh yes, I think we have one left. It's in the American History section."

American History? Yes, it seems that instructions for "Growing cannabis, starting a pirate radio station, living in a commune, stealing food, shoplifting, stealing credit cards, preparing a legal defence, making pipe bombs, and obtaining a free buffalo from the Department of the Interior" are now largely obsolete, and the value of the book is now entirely in its portrayal of the "Yippie Zeitgeist."

Nevertheless, Abbie Hoffman's "Pig Empire" is still as corrupt and authoritarian as it ever was. Its Military Industrial Complex is still enriching the 1% with profiteering on the trillions being spent waging unwinnable wars in foreign lands. Our governments wiretap every telephone call and all internet traffic, saving it all forever, and [appears to be capable of breaking all known forms of encryption](#).³

As George Carlin observed, "[They're against street crime, providing that street isn't Wall Street](#)."⁴ You will go to jail for stealing, provided you aren't stealing elections with robocalls or voting machines. The police state of today spends three times as much money imprisoning people as it does educating them.

While 1970's "Pig Empire" tolerated Abbie Hoffman writing a book with instructions for stealing property, 2012's police state will jail you for publishing decryption keys or linking to copyrighted content. We've lost the freedom to speak and publish in my lifetime, not gained it. Publishing has its place in the quest to change the world for the better. If action is a flame that consumes the old to make room for the new, words are embers that carry the fire to where it can blaze. That's why these essays are "Free as in Speech" *and* "Free as in Beer."

So, while you can tweet a link to download the book, you can also email the PDF, put it on torrents, host it in a bitlocker, or do whatever you like with it, subject to the MIT License terms. And I want you to do that! If you like what you read, pass it on any way you can.

Please, exercise your freedoms while you still have them, and **steal this book!**

Contact the author

Reginald Braithwate

²<http://www.semantikon.com/StealThisBookbyAbbieHoffman.pdf>

³http://www.wired.com/threatlevel/2012/03/ff_nsadatacenter/

⁴<http://motleynews.net/2012/02/04/the-truth-about-republicans-by-george-carlin/>

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Cover photo of Abbie Hoffman visiting the University of Oklahoma to protest the Vietnam War
Copyright 1969 Richard O. Barry

<http://www.flickr.com/photos/osbornb/3454738922>

Introductory photo of a protestor at Occupy Portland Copyright 2011 Lauren Hudgins

<http://www.flickr.com/photos/badlyricpolice/6825602774>

So Long, Reddit

Earlier today, I took my children to my great-grandparents' grave in Mount Pleasant Cemetery, Toronto. They don't have a big headstone, or a nice spot. But they have a big place in my heart: He came to Canada from Barbados, she from Jamaica, and he built two(!) houses for their extended family.

They sent their children to school. One of their sons got some patents on television. A daughter went to University after raising a family and taught school in Africa. Another son became [the first black Member of Provincial Parliament in Ontario](#)⁵.

[A granddaughter became an early programmer/analyst in Canada](#)⁶. I am her son.

I have been a Redditor on and off since its very beginning. Reddit is a business. And, it seems, a manifestation of the sincerely held extreme libertarian views of its founders on the subject of free speech.

These are nice theories to debate. The practical reality is that Reddit seems to have overtaken Stormfront as the world's largest White Supremacy community.⁷ And thus, every page view turns into some fraction of a dollar that powers a server that hosts hate.

Hate for me and my children. Hate for my great-grandparents coming here. Hate that goes beyond talk, and becomes shootings and burning of churches, and "standing your ground" against teenagers. To others, hate is just "disagreement." Or just "appalling talk." Or just "people of colour with thin skins."

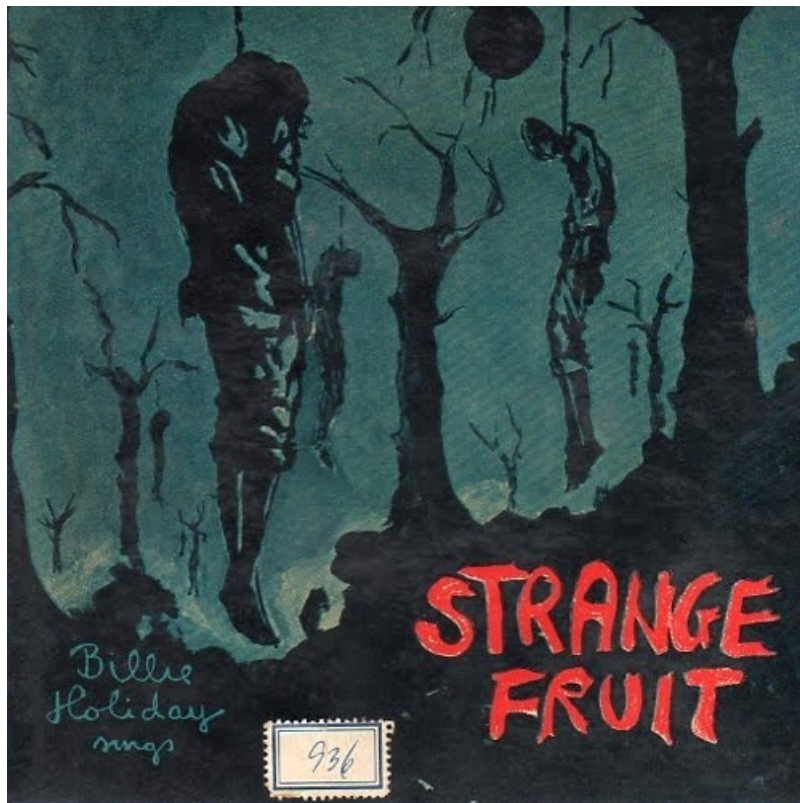
I grew up worshipping in a historically black church. There's another just down the street from me. There's also a Mosque and a Buddhist Temple, mind you. So when people talk about hate, it may merely be "offensive speech" when you, your children and your neighbours are not the people they want to exterminate.

But it is more than that to me.

⁵<http://blackhistorycanada.ca/profiles.php?themeid=20&id=14>

⁶<http://braythwayt.com/posterous/2012/03/29/a-womans-story.html>

⁷[How Reddit Became a Worse Black Hole of Violent Racism than Stormfront](#) suggests that Reddit may merely host worse racist content than Stormfront. The exact numbers are not central to my dismay.



I have no trouble distinguishing those who visit /r/programming and /r/javascript from those who inhabit /r/coontown. I like almost everyone I've interacted with on Reddit. But while the inhabitants may be different people, the landlord is the same person, and keeping the lights on in /r/javascript is also keeping the lights on in the Chimpire.

I don't need to debate whether someone is legally allowed to have a certain type of hateful speech, or whether its effects go beyond merely being "appalling" or "offensive." What I know is this: Choosing to build a for-profit business around hosting such speech is a choice, and choosing whether to support that business is also a choice.

"Hate is an unpleasant side-effect of hosting unfettered free speech in exactly the same way that cancer is an unpleasant side-effect of selling cigarettes."

The internet has free speech: You host your own web site, or your own forums. And racists already have lots of their own web sites where they can freely speak their opinions, organize politically, solicit donations, and so forth. It is not like Reddit is the only thing separating the world from a monoculture around respect for human beings.

No, Reddit's choice is just that: a choice freely made. Choosing to run a business that hosts certain types of speech has nothing to do with making sure people have a right to speak freely: It's inviting them to speak on your dime, and choosing to make money from their speech and their audience.

⁸<https://www.youtube.com/watch?v=h4ZyuULy9zs>

So Reddit has made its choice, and now I must make mine.

Sometimes, you think about all this and say, “I accept the responsibility, and the benefit I provide outweighs the bad things.” And sometimes you say, “No, the benefit does not outweigh the bad things, and I will not play along.”

I am choosing to stop playing along. I’ve [removed](#)⁹ most of the links to reddit discussions from [raganwald.com](#)¹⁰. My income will certainly go down. But for me personally, that is meaningless in the broader picture. I don’t want to make money from lung cancer, so I don’t do business with tobacco companies. I don’t want to do business with people who monetize hate, either.

So I won’t.

⁹<https://github.com/raganwald/raganwald.github.com/commit/7189fb3b7cf9c6a776e0f0eecd45ee157cbc2c87>

¹⁰<http://raganwald.com>

A Woman's Story

A little over sixty years ago, a young, intelligent black woman named Gwen was graduating from Allenby Junior Public School in Toronto. Her teacher provided her with a notice telling her where to attend secondary school the following Autumn, and she carefully carried it to her home on St. Clements Avenue, in an area that was affordable and populated by young, middle-class families. Mrs. Lois Barzey hadn't gone to university, but she had high hopes for her daughter Gwen. Lois's father—Gwen's grandfather— had come to Canada from Barbados specifically to find a better future for his children and grandchildren. Lois's brothers Brian, Layson and Leonard had gone to University. Leonard had a Harvard MBA and would later become Ontario's first black Member of Provincial Parliament. Layson was an engineer who had invented techniques for manufacturing colour televisions.

Lois read the notice and was dumbfounded. Gwen was being sent across town to a trade school, the kind of place that taught young women how to sew, cook, and type while it taught young men how to repair automobiles or pour concrete.

The next day, Lois visited the principal's office. Why, Lois wanted to know, wasn't Gwen going to North Toronto Collegiate, the academic school located a few blocks away. Didn't she have the necessary marks? Had Gwen somehow failed school? The principal was soothing. Gwen would be happier in a trade school, she would learn a trade that would be useful to her in the years before she started her family. Lois argued, but got nowhere. The decision had been made.

Lois was not easily deterred. A few days later, she was back in the principal's office with "The men of her tribe." Gwen's grandfather and uncles crowded into the principal's office and were free with their opinions of the decision and the process. All four men were forceful, and the principal relented.



North Toronto Collegiate Institute

So the following September, Gwen went to North Toronto, played first violin in its storied orchestra, and nurtured a lifelong passion for music and dance. In time she graduated, and attended the University of Toronto, the first woman in her family to do so.

Like many young women, Gwen attended regular dances. At one such event, she noticed a fellow who she described as the best dancer there, by far. His name was Charles, he was white, he was tall, and he reminded her of Fred Astaire. He was athletic as well, he was a ski bum of sorts, working and skiing out west all winter and returning to Ontario for the summer.

They danced, they fell in love, they married, and they tried to rent an apartment in a decent neighbourhood. This, it turned out, was impossible. In many US states, their marriage was illegal. In Toronto, they could marry, but they couldn't rent an apartment together as landlords were afraid of "trouble."

They would have to buy a home to live together, so they did. This was more expensive than renting, so they both needed to work. Gwen scoured the newspaper classifieds, and saw that Empire Life was hiring young men for a career in "data processing," no experience required. They invited applicants to attend a "cattle call" interview, so Gwen attended, on time and neatly dressed.



Keypunch Operators

She was, she recalled, the only woman. She was also the only black person. A crowd of young men

were lined up in front of some tables, where some women were handing out aptitude tests. When Gwen reached the front of the line, the women tried to be helpful. "Yes, we are hiring keypunchers, but you're in the wrong room." Gwen had learned how to be forceful, but she also learned some tact. And she needed that job.

"Couldn't I just try the test? No harm in that?"

There were shrugs and she was given a test and took the proffered pencil. There were tables available, so she found one, ignored the questioning looks from the other applicants, and started in on the questions. There were a lot of questions about numbers such as guessing the next number in a sequence. There were some logic puzzles, the kind where you have to figure out that it's the baker who rides a bicycle and the mechanic who lives in the house with a red door. There were some strange questions where she was given a sketch of a three dimensional figure such as a cube with some missing pieces, and she had to guess which shaped piece would fill the missing space, or guess which of several other pieces was the same thing rotated or reflected.

After answering all the questions, she handed it in and waited to be told what to do next. When her name was called, she accompanied an older man into a private room. He was very surprised to see her, and after looking through her answers, he asked her a lot of questions about her education and background. He thought for a while, then left the room to get an associate. The associate was unfriendly. Who, he wanted to know, had put her up to this prank?

Gwen was confused. What prank? The associate was sure that she was cheating, that someone had fed her the answers. In a scene that would be repeated decades later in the movie "Slumdog Millionaire," the two interviewers tried their hardest to get her to admit that she had cheated. Her score, they told her, was too good to be true. It was simply impossible for a young black woman to come in the 99th percentile on a test designed to measure aptitude for computer programming.



An IBM 704, introduced in 1954

Computer *what?*

Computer Programming. Empire Life had purchased a computer from International Business Machines, and like many companies today, they needed software written to automate their business processes. In addition to supplying to hardware, "IBM" also provided services for hiring and training all of the personnel for operating the new system, including the programmers. The interviewers

travelled from customer to customer setting up computers and training educated young men how to write programs for IBM computers, and they knew exactly how exceptional a candidate had to be to get scores like Gwen's.

They tried various other questions, questions from other tests, questions they used for more advanced candidates. Gwen answered as best she could. The men were amazed. To their credit, once they became convinced that she hadn't faked her results, they knew she would be a great hire. They recommended her for training as a programmer analyst, the most senior position being filled. She completed the training and became one of the first women to program computers in Canada. Gwen would go on to lead a number of large computerization projects in the insurance industry as well as for the City of Toronto.

Today she is retired, and like most retirees, she asks her son to help her with computers. She likes her Mac and runs a small business buying and selling books on line. What does she have to say about the difficulties she faced breaking into a male-dominated industry?

"I had it easy. The computer didn't care that I was a woman or that I was black. Most women had it much harder."

Hello, My Name Is Reginald and I Am a Socialist

Recently, someone expressed surprise that a regular contributor to Hacker News might be opposed to Capitalism.



Well, I (somewhat [erroneously](http://en.wikipedia.org/wiki/Socialism)¹¹) self-identify as a little-s socialist. Yeah, I get that Big S Socialism is Communist Russia. I also get that the USA is little-c capitalism, since its markets are very imperfectly free. Things like patent laws and never-ending Disney copyright extensions exist to make the markets inefficient so that monopolists can tax customers instead of exchanging goods or services for money at true market equilibrium.

But I don't want to have that coffee-house argument where we spend all our time arguing definitions. The thing is, I am what you might call a "local" rather than a "global" Socialist. I doubt full-on Socialism would work in Canada, but I like the idea of workers forming self-organized collectives.

Socialists advocate a method of compensation based on individual merit or the amount of labour one contributes to society. They generally share the view that capitalism unfairly concentrates power and wealth within a small segment of society that controls capital and derives its wealth through a system of exploitation. They argue that this creates an unequal society that fails to provide equal opportunities for everyone to maximise their potential.

¹¹<http://en.wikipedia.org/wiki/Socialism>

I have no idea if the folks laid off from auto-makers want to do that, but I do know that I and many of the programmers I know seem happy with the idea of working in small teams in a collaborative and egalitarian manner rather than having a command-and-control approach to doing things.

I don't like the idea of anyone forcing me to accept socialism, but I know that if you don't call it socialism, lots of people I admire voluntarily contribute to the collective community good through open source.

I get that what I like doesn't "work" in the sense that it isn't a universal prescription for making everyone in society happier. I get that the things I like are susceptible to being "gamed" much as North American "capitalism" is constantly being gamed. But given a sufficiently small sphere of concern and sphere of influence, I can enjoy what I like. Maybe most people want a boss telling them what to do and don't care whether what they produce is any good. I can't tell them to live their lives a different way. But I don't need everyone to buy into that. I just have to wander around until I find like-minded people in a [start-up](#)¹² or a [software development group](#)¹³ or [an espresso bar with free wifi](#)¹⁴.

Libertarian socialists (including social anarchists and libertarian Marxists) reject state control and ownership of the economy altogether, and advocate direct collective ownership of the means of production via co-operative workers' councils and workplace democracy.

I know that many startups are launched expressly to make their founders stinking rich. And I'm ok with that. I also know that many startups are launched because the founders prefer to work around the clock on something they love without a boss telling them to come on in on Saturday. That isn't socialism, but boy does it feel like workers being more efficient when they seize the means of production—the compiler—rather than being coerced or exploited.

So just as $2 + 2 = 5$ for sufficiently generous values of 2, I am a little-s socialist for sufficiently Libertarian values of "socialism." I cheer whenever a group of people get together and make something of value, whether they do it to flip a company into Google or whether they do it because it just had to be done.

My name is Reginald. And yes, I am a socialist.

¹²<http://myttc.ca/>

¹³<http://unspace.ca>

¹⁴<http://darkhorseespresso.com/>

Ursidae et Crocodylidae

In a fight between a Bear and a Crocodile, the terrain determines the outcome.

I recently wrote a little note about some of my values that I identify as little-s, highly local, libertarian socialist. As anyone with experience in the demonizing, black-and-white, you're in-favour-of-repealing-civil-liberties-or-you're-a-terrorist environment south of the 49th parallel could have told me, many folks ended up trotting out rather extreme definitions of "Socialism."

What I found really interesting about many of the comments was how often an entire argument would on an assumption that was slipped into things *en passant*. For example, consider this gem:

How can you have a society without private property if you don't have a state to take the property away from people and to enslave them?—"lzw"

Let's skip the "enslave people" bit, the point that catches my eye is this: The sentence assumes that property exists and that whatever we call property is [excludable](#)¹⁵. But the statement doesn't say so outright, it merely assumes this is the case.

This assumption, of course, is crucial to the argument. If property exists and if it is an excludable good, then it's quite proper to ask how a society can exist without *private* property. Does it simply not arise? is it prevented somehow? Is it redistributed somehow?

The obverse of the coin is that the notion of "private property" has no meaning if our alleged "property" is not excludable. If there is no way to exclude someone from using something I claim is "mine," I can't stop you from using it and the Socialist Bogeyman can't take it away from me.

But what if the basic assumption is wrong? What if whatever we are calling "property" property doesn't exist in this way? What if property isn't excludable?

This seems ridiculous. I'm typing this on a keyboard. I'm pretty sure that physical chattels like keyboards are excludable: I can put my keyboard in my bag, I can lock it in my shed. And while computers seem plentiful, there's some element of scarcity, we do not dispose of our iPads when we've finished using them the way we might casually discard a newspaper after reading it.

But not everything behaves like an iPad. What about intangibles like bits? There is no scarcity an episode of the show "Out With Dad."[^out] Any episode can be represented as a very large number, and we can copy numbers or manufacture them out of thin air for free. Numbers are [non-rival](#)¹⁶. Even if we write this number down on a physical piece of media, the atoms associated with the media

¹⁵http://en.wikipedia.org/wiki/Non-excludable_good

¹⁶http://en.wikipedia.org/wiki/Rivalry_

are so plentiful as to not behave like property in the sense that the atoms composing a keyboard behaves like property.

Our assumptions about keyboards seem very shaky when we try to apply them to very large numbers representing things like images, movies, music, operating systems, or perhaps even nothing at all. Of course, there are people who willfully ignore this reality and use force to treat numbers like keyboards. The record companies and the movie companies and the software companies have been fighting for thirty-five years to have their cake and eat it too: They want bits to behave like bits some of the time, e.g. They don't have to pay by the bit when they press a DVD, merely pay for plastic. But they want bits to behave like rivalrous, excludable physical property when it comes time to sell the DVD.

What does this have to do with whether Socialists are violent, raving lunatics? I don't know, I'm not an expert on Socialism. But I do recognize that in order to make the argument quoted above, all the parties have to agree that there is such a thing as property and there is a sense in which property can be private. You can decide for yourself whether everything is property, or most things, or maybe just some things. I'm neither agreeing nor disagreeing, but I am pointing out that many arguments are entirely dependent on assumptions that not everybody shares.

Big thing I've figured out recently: if somebody wants to play a fierce, competitive game of "Who's The Biggest Asshole?" with you, it's okay to let them win—Giles Bowkett,
*Better Late Than Never*¹⁷

If you want to "win" an argument, one strategy is to slip in an assumption that practically begs your argument. And of course, if you don't want to "lose" an argument, always examine the assumptions and see if they are beyond reproach. You can win pretty much any argument if you get to dictate the definitions.

But there's more to discussions than scoring cheap debating points. What value do we get from discussing an idea? Typically, we win when we see an old thing in a new way. When we feel around the edges of an idea and realize something about it that we never knew before. When we stretch things to the point of absurdity. If there are only five of something in the whole world, that thing is rare and you can be forgiven for making a lot of assumptions about how people would behave with respect to it.

But what if it became so plentiful as to be ubiquitous and essentially non-rival? In just a few generations, we have gone from building the first digital computer to digital computers being ubiquitous and very nearly free. Looking at ENIAC and dreaming of iPad would have been a triumph of imagination.

Why don't we dare to question the assumption that things in our world have a natural scarcity? Why don't we dare to question the assumption that things in our world are excludable? I personally think many things in my world are rivalrous and excludable but perhaps I should "let go of my senses and trust my feelings."

¹⁷<http://gilesbowkett.blogspot.com/2010/08/better-late-than-never.html>

Well let's see. The "natural" rivalrous nature and the "natural" excludability of atoms are mostly just limitations of our technology, aren't they? Keyboards and computers would be as cheap as toilet paper if we had a matter copier, anything made out of abundant raw materials would behave like bits. And even though we don't have matter copiers, arrangements of atoms are trending towards behaving like bits.

It's perfectly legal to "knock off" certain clothing designs, and clothing designs are not very rivalrous. But we treat certain logos and other identifying marks as property, even though it isn't excludable. We take abundant, non-scarce arrangements of atoms and try to create an artificial scarcity just because they embody a representation of a number.

At its heart, the question of private property in many cases isn't a question of property because many goods aren't really property. The question of property is a question of people pretending that that numbers are the same thing as physical objects. Or even more accurately, the question of property is really the question of people agreeing to limit their freedom of action and promise not to do something,

Gandhi [defied the British](#)¹⁸ by using the Sun to extract salt from water and refusing to pay a tax for doing so. Salt is abundant and freely available to anyone with a pan and access to the Sea. Treating it like property that can be taxed is a proxy for society getting together and agreeing not to leave a pan of saltwater in the afternoon Sun.

Identifying hidden, unstated, or otherwise questionable (not necessarily wrong, but subject to question) assumptions leads to greater understanding. I may be wrong, but the understanding I've gleaned by questioning the nature of property in a world of abundance is the understanding that what we are really talking about is an elaborate charade (inflammatory word alert!) where we pretend something about things for what we assert is the greater good.

Of course, it may actually be for the greater good! But we should at least be honest and say that we are not talking about private property or property at all, we are talking about an elaborate network of agreements we call "rights." That's fine, but talking about rights is very different than talking about private property:

How can you have a society without restrictions on freedom if you don't have a state to imprison people for treating numbers like physical objects that are rivalrous and excludable?

You can look at this question and still decide that we live in the best of all possible worlds. But it's a different question, and that's the value of questioning the hidden assumption.

p.s. The words "rivalrous": and "excludable" were suggested by [David Welton](#)¹⁹. Score another point for open minded discussion, thanks!

¹⁸http://en.wikipedia.org/wiki/Salt_Satyagraha

¹⁹<http://www.welton.it/davidw/>

Never Again

This morning, while waiting for the local grille to prepare my eggs, I opened the newspaper. Two stories on facing pages caught my eye. One remarked on the recent apology for the killings on [Bloody Sunday](http://en.wikipedia.org/wiki/Bloody_Sunday)²⁰ in 1972. British troops shot or ran down twenty-six unarmed protesters, killing thirteen immediately and another who succumbed to his injuries later. On the facing page, I read of the twenty-fifth anniversary of the bombing of [Air India Flight 182](http://en.wikipedia.org/wiki/Air_India_Flight_182)²¹, the deadliest aviation mass murder in history until eclipsed by the events of 9/11.

Although not all will agree with my view, I regard both as terrorist incidents, meaning, both were part of a campaign by one group of people to impose their political will on another group through the use of terror or fear on civilians. I'm not an expert on Northern Ireland or the movement to create an independent Khalistan. I identify more closely with incidents like the killings at [Kent State](http://en.wikipedia.org/wiki/Kent_State_shootings)²² in 1970, with the murders of Mike Clark and [Fred Hampton](http://en.wikipedia.org/wiki/Fred_Hampton)²³ in 1969, and with the bombing of the [16th Street Baptist Church](http://en.wikipedia.org/wiki/16th_Street_Baptist_Church_bombing)²⁴ in 1963.

We in Canada and our friends in the United States have rightly stood up and declared a "War on Terrorism." It is unacceptable to bomb an aircraft, or a church. It is unacceptable to try to advance your view on society or politics by killing civilians. Period. To prevent this, many have agreed that the loss of a little liberty is an appropriate price to pay for a little safety. I won't belabour the point by quoting Benjamin Franklin. My point is that there is another kind of terrorism, the terrorism of an army firing on unarmed protesters. The terrorism of police shooting an activist as he lays in his bed. Even illegal wiretaps and searches without warrants are a kind of terrorism, creating a fear that everything you do or say or think is being watched by people who themselves are not being watched or restrained.



²⁰[http://en.wikipedia.org/wiki/Bloody_Sunday_\(1972\)](http://en.wikipedia.org/wiki/Bloody_Sunday_(1972))

²¹http://en.wikipedia.org/wiki/Air_India_Bombing

²²http://en.wikipedia.org/wiki/Kent_State_shootings

²³http://en.wikipedia.org/wiki/Fred_Hampton

²⁴http://en.wikipedia.org/wiki/16th_Street_Baptist_Church_bombing

I say “Never Again” to those groups of extremists who would undermine our freedom through creating fear and terror. But I also say “Never again” to those who would misuse the tools of power—the police, the armed forces, and CSIS—to undermine our freedom through creating fear and terror amongst our own citizens. But when we’re asked to give up our freedom in the name of stopping terrorism, I pause only to ask that we not trade one kind of terror for another.

The Tyranny of False Positives

“Here’s the deal: Airport DHS scrutiny is a gating function. It lets the spooks narrow down their search criteria. Once you get pulled aside for secondary at the border, you become a ‘person of interest’ — and they never, ever let up. They’ll scan webcams for your face and gait. Read your mail. Monitor your searches.”

“I thought you said the courts wouldn’t let them...”

“The courts won’t let them indiscriminately Google you. But after you’re in the system, it becomes a selective search. All legal. And once they start Googling you, they always find something. All your data is fed into a big hopper that checks for ‘suspicious patterns,’ using deviation from statistical norms to nail you.”

—“[Scroogled](#)²⁵,” by Cory Doctorow, 2007

Nice story, with chilling overtones for contemporary life. Sure, a few details are wrong now. Google left China, but not because China was hacking Google’s users, but because China was hacking Google itself. And now Google obsesses over Apple and Facebook instead of Yahoo. But the details are right, and I think this is where we very nearly are today, if we aren’t there already.

And I’ll tell you why I’m against it. Not because of some airy-fairy human right to privacy or freedom to assemble or what-have-you. But this:

If you go by “suspicious patterns,” everyone is going to end up being a suspect. Everyone, that is, except the people who carefully manufacture their online personae. Which will probably end up being cyber-paranoids and actual criminals who are in the business of looking innocuous. Everybody else will become a “person of interest.”

I have 500+ Facebook friends. Statistically, how many degrees of separation am I from someone who gives money to a charity that is suspected of being a front for militant activities? My parents protested in the 60s. Do they have criminal records? Ancient dossiers for being radicals? How many of my University professors were [FLQ](#)²⁶ sympathizers? Or just thought that arresting 497 of people and interrogating them without trial or legal counsel was a bad idea? I wrote some encryption software for the Apple Newton. Oops, that was considered a munition in the 90s. I enjoy the espresso at [Jet Fuel](#)²⁷. How many time shave I searched Google Maps for its address?

I could go on, but my point isn’t that I’m unusual, but rather that I’m bland. I think if you dig deep enough, everybody has something unusual in their profile. In the past, nobody could be bothered

²⁵<http://www.scroogle.org/doctorow.html>

²⁶http://en.wikipedia.org/wiki/Front_de_lib%C3%A9ration_du_Qu%C3%A9bec

²⁷<http://jetfuelcoffee.com/>

to dig deep enough without soem provocation or cause. Now the computer does it for us, so we have red flags for everyone.

And?

Well, it's like this. What I believe is going to happen is that since everyone is a suspect, police officers will have to rely on hunches and intuition: *That guy is acting suspicious. He looks like a terrorist. Let's look him up. Bam! He retweeted a bunch of stuff about OccupyWhatever and he belongs to the same facebook cycling group as a known mercenary soldier. Hah! I knew my hunch was correct. Let's bring him in for questioning.*

Instead of using data to find the "bad guys," we'll use data to validate the practice of picking bud guys out of our police asses. And I know how that story ends up: We arrest guys with turbans, completely ignorant of the fact that Sikhs and Muslims are unrelated. Or we fall back on the old standard of arresting young men for "Driving While Black." Or we pull someone in who happens to be dating the daughter of the Lieutenant after she was told to stick to her studies and stop partying. Or we infiltrate reading groups

In statistical terms, data only becomes information when it correlates with outcomes. When it doesn't, it shifts from being a tool for safeguarding our freedoms to becoming a tool for imposing tyranny.

fin.

The Freedom to Drink Coffee

I read this analogy comparing free software programmers to labour organizers:

It's like an autoworker who wants everybody to unionize, and so he organizes sit-ins, but instead of ever forming the union that one guy just sits around all the time not working, ticking everybody else off.

Well now, as a [little-s socialist](#), I think I ought to respond with vigour. This is not what writing free software is about, not in the least. A sit-in is where you obstruct the company's operations. A strike is where you withhold your labour from the company. In both cases you are trying to change the company's behaviour.

Socialism and Freedom

Writing free software is not at all like organizing a sit-in or going on strike. *Writing free software is like going into competition with the company.* Imagine you don't like working for a big coffee chain. So you start giving away coffee from a cart on the street in front of your house. How is this like organizing a sit-in? And who are you ticking off? The people who want to drive through and get their coffee without parking their SUV and approaching your cart on foot?

The salient broken assumption is that free software programmers aren't working. We are working, even when we're just dabbling. It's just that we aren't working on what some people want us to work on. Maybe we will change the world and one day all software will be free, then again maybe not. But it could be that we are satisfied merely to live our lives in accordance with our principles, and we ask only that the fruit of our labour, our software, be used and distributed in accordance with those principles as well.

I don't know why or how this could tick anybody off. Recently, some software was removed from the iOS and MacOS stores because some or all of it is licensed in a manner that is incompatible with the license governing Apple's distribution of software. People are ticked off about this. I'm bewildered. Somebody wrote something, for free. He said, "Here is the fruit of my labour, use it, but I ask A and B and C of you. If A, and B and C are not compatible with your principles, please don't use or distribute my software."



The Apple store on fifth avenue in New York

A and B and C are not compatible with the way Apple does business, so this software will not be distributed by Apple. And? There are no bad guys here. Apple chooses the way it does business very carefully. The original author chose the way he licensed the fruit of his labour very carefully. And people who purchase iPhones or Macs made their choice very carefully. I own an iPhone. I realize I cannot use it in a free manner. I wrote software for iPad, and I deliberately made it a web-based game specifically so that it could be distributed in a manner compatible with my principles.

So far, what I see are free people making free choices, and there are no losers. I do not lose because I cannot run a free program on my iPhone. If I wanted to do that, I wouldn't have purchased an iPhone. I haven't lost anything. Nobody gave me something and then took it away from me. My iPhone runs the same software today that it did last month.

We Apple customers haven't lost anything, we can still use all of the software we were promised. Apple hasn't lost anything. If it wanted to distribute free software, it could change its policies. And the original software author hasn't lost anything, his software is still being distributed in accordance with his principles and wishes.

Coffee and Code

This brings me back to the quoted simile. I reject the comparison of free software programmers to autoworkers trying to unionize the company. A better comparison would be that someone writing free software is like a hippie who grows his own coffee beans and sells them at the side of the road by his farm. You can't buy them at Tim Horton's or Dunkin Doughnuts because the hippie doesn't like what the big chains do with the coffee.



Coffee beans

So you go to the hippie or you don't drink the coffee he grows. The problem is that you bought yourself a shiny espresso machine that only takes pods distributed by the manufacturer. So even if you buy the hippie's beans, you can't make yourself any coffee with them because the machine won't take them unless they've been shipped to the manufacturer and packaged into little special pellets.

How is this the hippie's fault for not liking big coffee chains or espresso machines? You can drink plenty of coffee, and you can buy a plot of land and grow your own coffee to be distributed by the espresso machine maker. You can buy a different kind of espresso maker that takes ground beans directly.

The hippie is free and you are free. The hippie hasn't shut down the big chains, but that isn't his goal. His goal is to sleep at night, comfortable that he has made choices compatible with his personal beliefs and that he has given other people the freedom to make choice compatible with their personal beliefs.

I can think of no greater definition of freedom.

Today You... Tomorrow Me

[rhoner²⁸](#) posted [this story²⁹](#) on reddit:

Today You... Tomorrow Me

Just about every time I see someone I stop. I kind of got out of the habit in the last couple of years, moved to a big city and all that, my girlfriend wasn't too stoked on the practice. Then some shit happened to me that changed me and I am back to offering rides habitually. If you would indulge me, it is long story and has almost nothing to do with hitch hiking other than happening on a road.

This past year I have had 3 instances of car trouble. A blow out on a freeway, a bunch of blown fuses and an out of gas situation. All of them were while driving other people's cars which, for some reason, makes it worse on an emotional level. It makes it worse on a practical level as well, what with the fact that I carry things like a jack and extra fuses in my car, and know enough not to park, facing downhill, on a steep incline with less than a gallon of fuel.

Anyway, each of these times this shit happened I was DISGUSTED with how people would not bother to help me. I spent hours on the side of the freeway waiting, watching roadside assistance vehicles blow past me, for AAA to show. The 4 gas stations I asked for a gas can at told me that they couldn't loan them out "for my safety" but I could buy a really shitty 1-gallon one with no cap for \$15. It was enough, each time, to make you say shit like "this country is going to hell in a handbasket."

But you know who came to my rescue all three times? Immigrants. Mexican immigrants. None of them spoke a lick of the language. But one of those dudes had a profound affect on me.

He was the guy that stopped to help me with a blow out with his whole family of 6 in tow. I was on the side of the road for close to 4 hours. Big jeep, blown rear tire, had a spare but no jack. I had signs in the windows of the car, big signs that said NEED A JACK and offered money. No dice. Right as I am about to give up and just hitch out there a van pulls over and dude bounds out. He sizes the situation up and calls for his youngest daughter who speaks english. He conveys through her that he has a jack but it is too small for the Jeep so we will need to brace it. He produces a saw from the van and cuts a log out of a downed tree on the side of the road. We rolled it over, put his jack on top, and bam, in business. I start taking the wheel off and, if you can believe it, I broke his tire iron. It was one of those collapsible ones and I wasn't careful and I snapped the head I needed clean off. Fuck.

No worries, he runs to the van, gives it to his wife and she is gone in a flash, down the road to buy a tire iron. She is back in 15 minutes, we finish the job with a little sweat and cussing (stupid log was starting to give), and I am a very happy man. We are both filthy and sweaty. The wife produces a

²⁸<http://www.reddit.com/user/rhoner>

²⁹http://www.reddit.com/r/AskReddit/comments/elal2/have_you_ever_picked_up_a_hitchhiker/c18z0z2

large water jug for us to wash our hands in. I tried to put a 20 in the man's hand but he wouldn't take it so I instead gave it to his wife as quietly as I could. I thanked them up one side and down the other. I asked the little girl where they lived, thinking maybe I could send them a gift for being so awesome. She says they live in Mexico. They are here so mommy and daddy can pick peaches for the next few weeks. After that they are going to pick cherries then go back home. She asks if I have had lunch and when I told her no she gave me a tamale from their cooler, the best fucking tamale I have ever had.

So, to clarify, a family that is undoubtedly poorer than you, me, and just about everyone else on that stretch of road, working on a seasonal basis where time is money, took an hour or two out of their day to help some strange dude on the side of the road when people in tow trucks were just passing me by. Wow...

But we aren't done yet. I thank them again and walk back to my car and open the foil on the tamale cause I am starving at this point and what do I find inside? My fucking \$20 bill! I whirl around and run up to the van and the guy rolls his window down. He sees the \$20 in my hand and just shaking his head no like he won't take it. All I can think to say is "Por Favor, Por Favor, Por Favor" with my hands out. Dude just smiles, shakes his head and, with what looked like great concentration, tried his hardest to speak to me in English:

"Today you.... tomorrow me."

Rolled up his window, drove away, his daughter waving to me in the rear view. I sat in my car eating the best fucking tamale of all time and I just cried. Like a little girl. It has been a rough year and nothing has broke my way. This was so out of left field I just couldn't deal.

In the 5 months since I have changed a couple of tires, given a few rides to gas stations and, once, went 50 miles out of my way to get a girl to an airport. I won't accept money. Every time I tell them the same thing when we are through:

"Today you.... tomorrow me."

Richard Feynman's Story

Richard Feynman³⁰ tells a similar story. I think it's in "[What do you care what other people think?](#)"³¹

My wife, Arlene, was ill with tuberculosis—very ill indeed. It looked as if something might happen at any minute, so I arranged ahead of time with a friend of mine in the dormitory to borrow his car in an emergency so I could get to Albuquerque quickly. His name was Klaus Fuchs. He was the spy, and he used his automobile to take the atomic secrets away from Los Alamos down to Santa Fe. But nobody knew that.

The emergency arrived. I borrowed Fuchs's car and picked up a couple of hitchhikers, in case something happened with the car on the way to Albuquerque. Sure enough, just as we were driving into Santa Fe, we got a flat tire. The two guys helped me change the tire, and just as we were leaving Santa Fe, another tire went flat. We pushed the car into a nearby gas station.

³⁰http://en.wikipedia.org/wiki/Richard_Feynman

³¹<http://www.amazon.com/gp/product/0393320928?ie=UTF8&tag=ranganwald001-20&linkCode=as2&camp=1789&creative=390957&creativeASIN=0393320928>

The gas station guy was repairing somebody else's car, and it was going to take a while before he could help us. I didn't even think to say anything, but the two hitchhikers went over to the gas station man and told him the situation. Soon we had a new tire (but no spare-tires were hard to get during the war). About thirty miles outside Albuquerque a third tire went flat, so I left the car on the road and we hitchhiked the rest of the way. I phoned a garage to go out and get the car while I went to the hospital to see my wife.

Arlene died a few hours after I got there.

A slightly different version of the story merging the hitchhikers with Fuchs is depicted in Matthew Broderick's movie "[Infinity](http://www.amazon.com/gp/product/B00006SFK1?ie=UTF8&tag=raganwald001-20&linkCode=as2&camp=1789&creative=390957&creativeASIN=B00006SFK1)³²." On the drive to the hospital, Richard picks up a hitchhiker, a Mexican who speaks no English. To pass the time while driving, he rambles on and tells the Mexican about his wife and how she's sick, but the Mexican can't understand him. The crux of the story is when they break down. They aren't in danger of dying in the desert, they get to a gas station, where the Mexican suddenly speaks perfect English and explains how to fix the car so that Feynman can make it to see his wife in time.

Feynman deduces that the Mexican pretending to speak no English is actually a spy, and asks him why he broke his cover. The Mexican answers that he was moved by Richard's plight.

³²<http://www.amazon.com/gp/product/B00006SFK1?ie=UTF8&tag=raganwald001-20&linkCode=as2&camp=1789&creative=390957&creativeASIN=B00006SFK1>

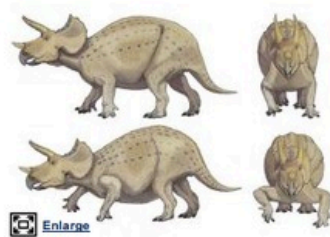
The Internet Made Me Sad Today

I read an interesting article today: [New research provides clear answer to debate on dinosaur posture](#)³³. It's published on [physorg.com](#)³⁴, a web site that bills itself as being a source of "Science : Physics : Tech : Nano : News."

I tried to read it and got confused:

New research provides clear answer to debate on dinosaur posture

February 23, 2012



Drawings by Shin-ichi Fujiwara (drawing grayscale image) and Soichiro Kawabe (coloring) from the University of Tokyo

[Enlarge](#)

(PhysOrg.com) -- Research published today (22nd February) provides, for the first time, a clear answer to the debate as to whether Triceratops and other extinct creatures took on a more mammal-like or more reptile like posture.



Ads by Google



[Play Games on Google+](#) - With over 20 games to choose from, you can have fun for hours. Log on! - [plus.google.com](#)



Dr. Shin-ichi Fujiwara from the University of Tokyo and Professor John Hutchinson from the Royal Veterinary College have developed a new, advanced method that provides insight into the kinds of forelimb postures [animals](#) might use, derived from simple measurements on bones.

Findings using the new method show that, contrary to popular belief, Triceratops had quite upright forelimbs like larger mammals, not splayed out to the sides like most reptiles and amphibians. This understanding changes the way we visualise the posture and motion of [Triceratops](#), and also suggests that the animal might have been more athletic than previously thought.

Different [land animals](#) use different muscles to support their weight, which attach to different bones in the elbow. Because of this Fujiwara and Hutchinson concluded that the bones must be shaped differently to form competent levers for the attaching elbow muscles.

Real content

Scanning down underneath the diagram, I saw "Play Games on Google+" along with a lot of small text. I kept scanning, thinking that the column of text had something to do with playing games. When I couldn't find the article, I had another look and realized that Google's ad feces was masquerading as copy, and so successfully that it convinced me the real copy was part of the ad.

³³<http://www.physorg.com/news/2012-02-debate-dinosaur-posture.html>

³⁴<http://physorg.com>

Once I did the work of figuring out that the real copy began below the ad, I could read the article. That's annoying, but it doesn't make me sad.

How Google Made Me Sad

What makes me sad is that the pinnacle of our computing power, the massive behavioural engine that is Google Adwords/Adsense, has decided that when someone is reading about dinosaurs, the most profitable thing to do is show them ads for games. Not books about dinosaurs, or even dinosaur games, but games.

We take a generation of incredibly smart people who have been rigorously trained to deliver amazing code, running on a massive computing engine, and when confronted with a human being trying to learn something, they try to distract him with games. Can you imagine Google in charge of textbooks? In my children's time, textbooks will be immersive experiences, complete with Google's avatars whispering "Psst! Math is hard, let's play games instead of studying." Can you imagine Google making eyeglasses? They would obscure anything educational with virtual billboards for dating sites.

I know that this engine is driven by the money, and the money is in luring people into Google's social thingamajiggy instead of trying to sell someone a book or a course or even a BBC/Discover/National Geographic edutainment special on dinosaurs or natural history.

But you know, the whole point of having values is that sometimes you don't do the most expedient thing or the most profitable thing or the easy thing. That's what makes them values, *you value them more than pecuniarum*³⁵. Between them, physorg.com and Google value money, and that's it.

How Scum-Sucking Bottom Feeders Made Me Mad

There's more on the same page, of course:



A nasty ad

³⁵<http://weblog.raganwald.com/2006/08/difference-between-values-and.html>

Advertisement

	Penny auction website QuiBids.com saves consumers up to 95% off retail...		Mom discovers shocking \$5 method for erasing wrinkles. She angers dermatologists for revealing it!
	Canadian mom exposes \$5 wrinkle trick to look 10 years younger ...		Recession or not, penny stocks are the secret to being able to afford anything you want...

Terrible ads

	Money Can Buy Happiness Recession or not, penny stocks are the secret to being able to afford anything you want... Learn more
	Mom is 57, Looks 25 Mom exposes an anti-aging miracle. Her \$4 trick erases wrinkles! 14 days results revealed Learn more
	Samsung Tablets for \$29? TODAY: Auction site sells 1,000s of Tablets for as low as \$29! Learn How Now... Learn more

More terrible ads

It's all the same thing, isn't it? And it's all sad.

Maybe the really sad thing is that these ads "work." But I am not going to blame the victim and say that because people click them and because they make money for businesses that the problem is what people like. Some foods taste good but kill you. Some drugs make you feel good but rot your brain. And some ads lead the curious away from knowledge. I lament the values of the people involved in this bottom-feeding approach to advertising on the Internet.

Perhaps Someone other than Google is involved in deciding that stock market scams and anti-aging scams and auction site scams are the best way to extract value from my curiosity about dinosaurs. Doesn't matter who it is, my message to all of the people doing this: *The choices you make, suck and suck hard.*

Conclusion:

It makes me sad that we have this much power, and this is how we use it.

Friendly for Business

Despite all the talk about the trillions of dollars being made in the technology business, Real Estate is the single greatest engine for creating millionaires and billionaires ever discovered. One of the great things about being in Real Estate is that you don't have to be *in* business, you simply collect a rent from people in business.

Let's close our eyes and imagine we decide to build a shopping mall. Great! All these stores move into our mall, and we provide them with empty space. They improve the space, the stock it with wares, they employ people to provide services and sell goods, and they pay us a fixed rent, expenses for electricity and other services, and perhaps we even charge them a certain cut of their sales on top of all that. Sweet.



Dubai Mall

We need a location. Land costs money, so we look around at various jurisdictions, towns where we could buy up some vacant land and build our mall. We're building a "Destination Mall," a place that attracts its own traffic, so we don't have to buy pricey property downtown in a metropolis. We'll build our own off-ramp from the superhighway, we'll erect our own billboards sending drivers to our mall, we just need a nice town, clean and safe, where the local authorities are eager to attract businesspeople.

We find a nice place. The inhabitants are a touch puritanical, their schools seem to have a real issue with teaching evolution or sex education, but that is not our problem, we are building a business, and they seem to love business, it's in their blood. Fine. We do a deal, and put up a mall. Naturally this brings revenue into the town, we hire people to build and run our mall, we're attracting jobs. We like to think of ourselves as good corporate citizens.

The tenants move in, the mall thrives, pretty soon there are 400,000 customers a month going through our welcoming doors and business is doing very nicely, thank you. One day, there's an urgent phone call from one of our tenants. He's shouting incoherently about a problem at the mall. As you're trying to get him to calm down and explain, you see there are calls waiting from other tenants. Your email inbox starts to gyrate like a drunkard with Delirium Tremens. Your assistant sticks her head in the door of your office. The press are outside, they want to interview you about the problem at the mall.

WTF!?

You head straight over. There are news vans filling the parking lot and angry mobs of customers milling about. All the lights are off and the doors seem to be padlocked closed. You push through the throngs to the doors. There are swaths of police tape over the doors, "crime scene investigation." It seems the police have shut down the entire mall. You look around for the police, but they are nowhere to be found.

You rush to the nearest police station to find out what is going on. You were not called, you did not receive any paperwork, the mall was just closed. On your way, you notice that your billboards have been papered over with massive signs, "Mall closed because of criminal activity." Your business is being ruined, and you don't even know why. The policeman at the station is very nice, but he explains that it has nothing to do with him, they got a request from the Fraud Squad, and they complied. Was there, you wonder, any court order? The policeman shrugged. "I get a call from Fraud," he says, "I do what they ask."

You call the number he provides. It takes you a few hours of leaving messages, calling back, getting redirected, and finally you reach a woman who says she's in charge of this case. "I have to review the files," she says, "I'll get back to you in a few days when we've decided what to do." A few days! What on earth could have provoked this kind of draconian action of closing an entire mall?



A Crime Scene

"Well," she says, "I can't disclose any particulars, but we received a tip that one of the businesses in your mall is stealing from customers. Skimming bank card details perhaps. Maybe getting them

to divulge personal information in the guise of applying for a loan. Like I said, I have to review the file. Either way, your mall is a de facto centre of criminal activity, so we closed it. Once we've had a look, we'll figure out if we can reopen the mall."

The Program

"Say," she continues, "we have a program for businesses like yours. What you need is a Liaison Officer. They can help you out." You aren't a criminal, you didn't know you needed your own personal police officer to protect you from the police. But you play along and ask how that works.

"Well, it's simple, really. Once a crime has been committed, we have to close everything down to keep the criminals from hiding or destroying the evidence. And, of course, they've already stolen the money. So what we do is, we work with you to assist our surveillance teams. You provide us with all the names, personal details of your tenants and shoppers, real-time access to your surveillance camera feeds, bank records, emails, everything, and we won't need to close you down."

Aren't they asking you to help them spy on your tenants and their customers?

"It's not spying, no, spying on our citizens is prohibited by law. We're *investigating crimes*. We're the good guys, remember? You're just being a good corporate citizen, not one of those companies acting as a safe harbour for our enemies, right? All the Big Boys are onside with this. You'll notice we never shut them down, no. Anyways, let us know if you'd like to do your bit, a lot of this unpleasant stuff will just go away. This is strictly voluntary at the moment, nobody's forcing you to do anything."

You are fuming. You lay out your own money to build a mall, you bring jobs, prosperity to this little town, and your reward is to have your business shut down at what amounts to a whim. You grew up in a small town. Everyone knew everyone. If the detectives had called and asked to shut one of the town's leading employers down, the police chief would have had a long chat with the detective about what's good for the town and what's bad for the town, and whether they could find a way to work with the business to bust the actual perpetrator of the crime.

Closing an entire mall for a case of fraud is the kind of thing that creates a ghost town. As the anger recedes, you know that in a few days you will get your mall reopened. You start placing calls to PR firms to get stories about the mall in the papers and on the news, you need to pressure them into reopening the mall and fix the damage to your reputation, fast. You also call a meeting with the firm you hire to scout for new locations. You won't be expanding here.

This town is no longer friendly for business.

The Free World

So, it seems that a couple of Brits travelling to the US on holiday were detained for twelve hours and then deported for having tweeted nasty phrases like “Destroy America” and “Dig up Marilyn Monroe’s grave” when discussing their holiday plans.

<http://www.thesun.co.uk/sol/homepage/news/4095372/Twitter-news-US-bars-friends-over-Twitter-joke.html>³⁶

Now as just about everybody in the English-speaking world knows, to “destroy” something sometimes means blowing it up violently. But it also sometimes means making a joke that has people falling down in laughter (Man, I destroyed Reddit with my joke about [the three engineers who get in a car](#)³⁷). And it sometimes means to defeat in a peaceful competition (The Canadian women are planning on destroying the USA in the gold medal ice hockey match).



Orange Alert!

The TSA people know this! So what’s the deal?

Consider this: The same tools that can find your tweets are part of a big machine that follow you around, see if you talk to other suspects, watch whether you are buying fertilizer and diesel fuel, and so on. If for one moment the authorities suspected these two of travelling to the US for the purpose of violence, they would not have been given a stern talking-to and deported, they’d have been water-boarded.

I’m left with no option but to quote the late George Carlin, whose gravestone ought to be inscribed: “I told you so.” Why does the TSA constantly disrupt people’s privacy and security?

To remind you that they can fuck with you whenever they want.—George Carlin

³⁶<http://www.thesun.co.uk/sol/homepage/news/4095372/Twitter-news-US-bars-friends-over-Twitter-joke.html>

³⁷http://www.reddit.com/r/programming/comments/ntd43/software_bug_fingered_as_cause_of_aussie_a330/c3bvhyy?context=3

The more the state visibly and publicly fucks with ordinary people, the more desensitized we become to it, the more we accept it as “business as usual.” Today it’s a tweet. Tell me, will you be surprised if one day we have microphones in public places and someone is barred from entering the USA because of something they said in public? What about if I call a snitch line and report that you said “Destroy America” in private? Would you expect the TSA to treat that differently?

What kind of a world are we living in where you can’t say anything for fear of the police fucking with you?

False Dichotomy

I was drinking my coffee and idly scanning Facebook this morning when I noticed that [one of my friends](#)³⁸ had gotten into an argument about this:



There's no argument about the facts presented in the image: The user experience for watching big studio movies at home is terrible. I can stream music all around my various devices, select them from a jukebox, it's amazing and yes, [Louis CK](#)³⁹, I'm happy. Movies, not so much. DVDs are cumbersome and encumbered with extra nonsense as shown above.

My government is being pressured by the USA to criminalize ripping a DVD into a file even if the only thing I do with the file is watch the movie at home on exactly the same device that plays a DVD. I can "buy" some movies on iTunes, but not in HD. And they have DRM that restricts moving them from device to device. I have anxiety about DRM, I never know if the DRM servers will be shut down and I'll be left locked out of my movies, as has happened repeatedly in Entertainment history.

³⁸<https://twitter.com/#!/graemebunton>

³⁹<https://www.youtube.com/watch?v=8r1CZTLk-Gk>

All of this is, of course, accepted fact. There is one experience for people who circumvent the studio's DRM distribution, and another for people who subject themselves to it.

So what was the debate about, you may ask? Well, my friend suggested that he'd rather go with the first option (this was not a confession to actually doing anything, of course, just expressing a preference). The response was an accusation that he was stealing from the hard-working creative types who make movies, or perhaps from the hard-working extras, runners, set decorators, truck rental companies, or whomever else is in the business of making movies and doesn't fit our prejudices of being an evil entertainment executive.

So are people who share movies slaving pirates taking the bread out of the mouths of hard-working people? I'm inclined to think not, but I understand that some people think that sharing movies is theft. Are people who buy DVDs and then download HD versions of movies because they didn't buy a Blu-Ray player thieves? How about people who buy a DVD and then rip it to a file so they can stream it around their house? Are they thieves?

The Trap

We could debate these questions, but here's the thing: *To argue these questions is to fall into a trap that the studios have carefully prepared for us.* They have spent hundreds of millions of dollars on advertising and PR just to lead us into arguing about whether we should "steal" movies or put up with their customer-hostility. We argue about which of these two options is worse: Depriving hard-working people of their money or depriving ourselves of a decent home movie experience. Arguing about whether sharing movies is piracy is a way of arguing about how bad option number one is so we can say it's the better of the two choices. But don't fall for the trap: The problem here isn't whether sharing movies is piracy. **The problem here is that we only have two choices: piracy or lunacy.**

I'll say it another way. Stop asking whether sharing movies is or isn't better than the DRM-infested crapware the studios are selling. Start asking why we are only allowed to choose between sharing movies and enduring them.

The whole thing is a false dichotomy, brought about because the studios refuse to give us more options. They could choose to sell DRM-free movies for a premium over movies with DRM and see what happens. Borland tried that with Turbo Pascal and sales went up. Apple dragged the music labels kicking and screaming into trying that and revenues went up. The studios could give us another option, but they choose not to. Their business strategy is clearly to exclude the middle, to create two unreasonable positions and argue that theirs is the "less unreasonable" position. Thanks to their lobbying and the fact that the citizens of the US are vassals to their bought-and-paid-for lawmakers, an American faces a choice between enduring the crap on a DVD or jail time. Even if he purchased the DVD!

This is a lot like sports arbitration: When an athlete goes into arbitration, they argue back and forth, and then the team and the athlete's agent prepare compensation proposals. The arbitrator has to pick one without modification. Let's say the arbitrator believes the athlete ought to get M\$2.5 a year. The team offers M\$2, and the agent says M\$2.8. Well, they're both wrong but the agent is "less wrong," so M\$2.8 it is. As long as the arbitrator is not allowed to send them both back to be redrafted, you

get ridiculous outcomes. And that's how it is here. You have two unreasonable positions, and you must pick the less unreasonable way to watch a movie.

And there is only one person to blame for the mess: The studios. They're the ones who carefully constructed a system where you have to choose between jail and crapware, and where movies your grandparents watched as a child are still covered by copyrights. So the next time this old argument comes up, don't fall into the trap of arguing whether sharing movies is piracy. Instead, ask why our only choice is between piracy and lunacy.

I Have a Bad Feeling About This

This is my contribution to [Uncensored: A Charitable Project to Support The Open Internet](http://leanpub.com/uncensored)⁴⁰. This work is licensed under a [Creative Commons Attribution 3.0 Unported License](http://creativecommons.org/licenses/by/3.0/)⁴¹.

This year I will celebrate my fiftieth birthday. While I haven't spent a half-century hacking, I recall playing with punch cards in the 1960s, so it has been a good forty years of fascination with information technology. In those forty years, what have I done? I have not written any great books. I do not teach in a university. I did not make millions of dollars. I did not invent anything critical to the advancement of the human race.

My perspective is a little like that of C3PO in Star Wars, a minor character throwing his hands up in dismay at calamity and providing others with an interesting viewpoint on the great events of the last forty years.

Like any space opera, the story of information technology is a very simple one. It is played out in a myriad of different ways by a revolving cast of characters, but it always has its loveable heroes, its predictably nefarious villains, innocent civilians to be saved, and bumbling bureaucrats that aren't inherently evil, but begin every story aiding the forces of darkness out of a misplaced belief they are preserving law and order in their corner of the galaxy.

The heroes are always in possession of a great secret, one that will disrupt the empire. It always works the same way: It takes power out of the hands of the entrenched nobility and bureaucrats and puts it back in the hands of the people. The movie tells us all about it in Act I, deals a great setback to the heroes in Act II, and in Act III they prevail through pluck and a fierce disdain for the overwhelming forces arrayed against them. Who can forget Han Solo's grim tagline, "Never tell me the odds?"

In hardware, minicomputers disrupted mainframes. Then microcomputers disrupted minicomputers. Now phones and tablets are disrupting microcomputers. With each wave, a hardy band of rebels fought against everything the industry threw up in their way. Waves of salespeople spreading FUD. Rigged government procurement deals. Lobbyists in the halls of power passing laws against them. The battle cry of the empire has always been that a victory by the rebels would cost the economy everything, that jobs would vanish and chaos would reign. But each victory by the rebels actually created more jobs, more wealth, and more freedom.

Now in the next century, what does a somewhat battered and out-of-date protocol droid observe? That everything old is new again. The "intellectual property cartels" act like the hardware giants of old, buying politics by the pound and telling everyone who will listen that they need more protection for their patent portfolio, more protection for their cartoon characters, more protection for even the depiction of sporting events.

⁴⁰<http://leanpub.com/uncensored>

⁴¹<http://creativecommons.org/licenses/by/3.0/>

They tell us that only a “managed economy” for intellectual “property” will preserve jobs, and that if the serfs have more “freedom,” this will actually lead to slavery. They warn us that roving bands of pirates are living it up like drug barons on movie downloads. They explain how they need the senate to grant them special, temporary powers to download the contents of your phone or laptop when you cross the border, they explain why they need to send violent special forces police to arrest and extradite the owners of a file downloading business, they explain why they need to monitor the entire world’s tweets looking for jokes in poor taste.

And that’s just how they run politics. If you want to create the future, the possibility of successfully navigating a patent minefield is approximately 3,720 to 1. And I noticed earlier, the electoral motivator has been damaged. It’s impossible to go to political innovation speed.

We are, I think, at the beginning of Act III. Some of you will agree with me that surrender is a perfectly acceptable alternative in extreme circumstances. But others will climb into their trusty ships and continue the fight, harassing and wounding the entrenched interests until the whole thing collapses under the weight of its own corruption. The future of our economy really does depend on the rebels succeeding. At every point in the last forty years, wealth, health, and happiness in our economy have been built on the freedom to disrupt the entrenched powers, not the preservation of their rent-seeking monopolies.

More jobs and businesses have been created by VCRs than destroyed by them. More jobs and businesses have been created by the breakup of AT&T than destroyed by it. More jobs and businesses have been created by the decline of IBM than lost in Armonk. More jobs and businesses have been created by the stagnation of Microsoft than lost in Redmond. And it will be the same with the RIAA, the MPAA, Intellectual Ventures, and everyone else scheming to enthrall the people with digital “rights” management, erect paywalls around scientific knowledge, and sponsor the criminal prosecution of “file sharing.” In the destruction of the monopolization of ideas, lie the seeds of a new revolution, one that will bring wealth, freedom, and jobs.

Rebels, the force will be with you.

Always.